

24STCV17833 24STCV17833

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Case Number: 24STCV17833 Hearing Date: August 13, 2026 Dept: 733

08/13/2026

advanced from 12/8/26

Dept. 73

Hon. Gary D. Roberts, Judge presiding

Jeremy

D. Lubin, et al. v. Nancy Burkhart-Board (24STCV17833)

Counsel for Plaintiffs/moving parties: Keith

Turner, et al.

Counsel for Defendant/opposing party: Nancy

Burkhart-Board, in pro per

Motion for terminating

sanctions (filed

by Plaintiffs Jeremy and Elizabeth Lubin on July 6, 2026 and advanced via July 9, 2026 Ex Parte order from December 8, 2026. Notice of order served on July 20, 2026.)

TENTATIVE RULING

Plaintiffs' motion for

terminating sanctions is GRANTED. The November 18, 2024, filed answer is struck.

Background

Plaintiffs Jeremy and Elizabeth Lubin own a certain home located 3437 South Kerckhoff Ave., San Pedro, with Defendant Nancy Burkhard-Board in an adjacent home at 3503 South Kerckhoff Ave., San Pedro. Plaintiffs allege Defendant acquired the property in 2021, and commenced a campaign of harassment, including placement of a “spite fence,” other non-permitted construction projects, and direction of bright lights into Plaintiffs’ home, and challenges to the placement of garbage cans on collection days.

On July 14, 2024, Plaintiffs filed their complaint for (1) Spite Fence Abatement (2) Negligence (3) Negligence, (4) Elder Financial Abuse, (5) Declaratory Relief. Defendant answered on November 18, 2024.

On September 3, 2025, the court granted the motion of defense counsel to be relieved of representation of Burkhardt-Board.

Arguments

Plaintiffs Jeremy and Elizabeth Lubin move for terminating sanctions or alternatively issue and evidentiary sanctions, due to Defendant’s failure to comply with the May 13, 2026, court order compelling Defendant’s appearance for deposition, and the failure to provide further responses to special interrogatories, and requests for production of documents.

ANALYSIS

A.

Legal Standard for Terminating,
Issue, and Evidentiary Sanctions

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

... (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (d) The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party.” (Code Civ. Proc., § 2023.030.)

Evidence or

issue sanctions may be imposed only after parties violated discovery orders compelling further responses, except in exceptional circumstances, including where there was sufficiently egregious misconduct regarding a failure to respond to discovery, or a prior discovery order would be futile. (New Albertsons, Inc. v. Sup. Ct. (2008) 168 Cal.App.4th 1403, 1428.) “The discovery statutes thus ‘evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ (Citation.) Although in extreme

cases a court has the authority to order a terminating sanction as a first measure (Citations), a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.)

The court hesitantly imposes issue and evidentiary sanctions, where the result leads to a potential windfall for the prevailing party and an effective “avoidance of a decision on the merits.” (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194 accord McGinty v. Superior Court (1994) 26 Cal.App.4th 204, 214 [“On balance, we conclude that it was excessive and an abuse of discretion for the trial court to impose the preclusive witness and evidence sanction in this case ... where no real harm has been done ..., and where the punishment falls most harshly not on the supposed malefactor but on the petitioners in their ability to have their case decided on the merits”]; Parker v. Wolters Kluwer United States, Inc. (2007) 149 Cal.App.4th 285,

301.)

A

prerequisite to the imposition of the dismissal sanction is that the party has willfully failed to comply with a court order. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280; *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487 overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.); *Young v. Rosenthal* (1989) 212 Cal.App.3d 96, 114.) Preventing parties from presenting their cases on the merits is a drastic measure; terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order and it appears a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326; *Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191 ["Terminating sanctions are to be used sparingly because of the drastic effect of their application"].) "The trial court may order a terminating sanction for discovery abuse 'after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.'" (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

B.

Plaintiff in Pro Per

"Although self-represented

litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party.

... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.)

C.

Analysis

May 13, 2026, the court granted Plaintiffs' motion to compel the deposition of Defendant, and responses to form interrogatories, special interrogatories and requests for production of documents. The court denied the motion for non-monetary sanctions, but imposed monetary sanctions. The court also granted the motion for terminating, issue and evidentiary sanctions regarding the deposition.

Since the withdrawal of counsel, Defendant presents no representation to the court regarding efforts to comply with the court orders or obtain new counsel. Defendant's failure to appear for deposition and non-compliance with any of the discovery orders compelling responses to discovery indicates an abandonment of any defense to the action. Relinquishment under the circumstances constitutes a willful choice to concede on the merits of the discovery. Given the prior order for sanctions relating to the deposition, further issue and evidentiary sanctions appear ineffective. The material impact of both the prior order and the proposed order for issue and evidentiary sanctions would effectively lead to a concession of a completely meritorious action and no valid defense. The net result leads to an effective judgement in favor of Plaintiffs via trial or default judgment. Rather than impose additional burdens on Plaintiffs and the court, the court orders terminating sanctions.

D.

Conclusion

The motion for terminating sanctions is granted. The court strikes the November 18, 2024, filed answer to the complaint. Plaintiffs may submit an application for default with the clerk following entry of this order, and proceed with a default judgment pursuant to statutory guidelines.

Plaintiffs to
provide notice.